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Ld. Ch. Just. Well, go on, Sir.

Mr. Recorder. That which I would urge, my Lord, is only this: I think, my Lord, we have proved one Information, and that they have made no Answer to it; for the Answer they have made is but Argumentative, and taken either from the Persons of the Defendants, as Peers, or from the Form of its being a *Petition*: As Peers, it is said, they have a Right to *petition* to, and advise the *King*; but that is no Excuse at all, for if it contains Matter reproachful or scandalous, it is a Libel in them, as well as in any other Subject; and they have no more Right to Libel the *King* than his Majesty's other Subjects have; nor will the Privilege of their Peerage exempt them from being punished. And for the Form of this Paper, as being a *Petition*, there is no more Excuse in that neither, for every Man has as much Right to publish a Book or Pamphlet, as they had to present their *Petition*. And as it would be punishable in that Man to write a scandalous Book, so it would be punishable in them to make a scandalous and a libellous *Petition*. And the Author of *Julian the Apostate*, because he was a Clergyman, and a Learned Man too, had as much Right to publish his Book, as my Lords the Bishops had to deliver this Libel to the King. And if the City of *London* were so severely punished, as to lose their Charter for *petitioning* for the *Sitting* of a Parliament, in which there were reflecting Words, but more soft.——

Mr.

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Mr. Just. Holloway. Pray, good Mr. Recorder, don't compare the writing of a Book to the making of a *Petition*; for it's the Birth-right of the Subject to *Petition*.

Mr. Recorder. My Lord, it was as lawful for the City of *London* to *petition* for the *Sitting* of a Parliament, as it was for my Lords the Bishops to give Reasons for their Disobedience to the *King's* Command: And if the Matter of the City of *London's* *Petition* was reckoned to be Libellous, in saying, That what the *King* had done in dissolving the Parliament, was an Obstruction of Justice, what other Construction can be made of my Lords the Bishops saying, That the *King's* Declaration is illegal? And if the Matter of this *Petition* be of the same Nature with that of the City of *London*, your Lordship can make no other Judgment of it, but that it ought to have the same Condemnation.

Mr. Just. Powel. Mr. Recorder, you will as soon bring the two Poles together, as make this *Petition* to agree with *Johnson's* Book; they are no more alike than the most different Things you can name.

Mr. Serj. Trinder. My Lord, I have but one Word.

Ld. Ch. Just. How unreasonable is this now, that we must have so many Speeches at this Time of Day? But we must hear it; go on, Brother.

Mr. Serj. Trinder. My Lord, if your Lordship pleases, That which they seem most to insist